

VENDOR AGREEMENT

VENDOR AND SUPPLIER AGREEMENT

This Vendor Agreement (the "Agreement") is effective as of 5 June 2025, between Apex Innovations LLC ("Purchaser") and Quantum Dynamics Inc. ("Vendor").

- 1. GOODS AND SERVICES.** Vendor agrees to supply Purchaser with raw materials and components (the "Goods") as specified in individual Purchase Orders issued by Purchaser. Vendor shall ensure that all Goods strictly conform to the quality specifications and technical requirements detailed in Exhibit A.
- 2. PRICING AND PAYMENT.** Purchaser agrees to pay Vendor for the Goods in accordance with the pricing schedule set forth in Exhibit B. Total annual spend under this Agreement is estimated not to exceed \$413,000.00. Payment terms are Net 60 days from the date of a valid and accurate invoice.
- 3. DELIVERY AND RISK OF LOSS.** Vendor shall deliver the Goods to Purchaser's manufacturing facility located in New York. Delivery shall be made DDP (Delivered Duty Paid). Title and risk of loss shall pass to Purchaser upon physical delivery and preliminary inspection of the Goods at the destination facility.
- 4. WARRANTIES.** Vendor warrants that all Goods supplied will be free from defects in materials and workmanship for a period of twelve (12) months from the date of delivery. If any Goods are found to be defective, Vendor shall, at Purchaser's option, either replace the defective Goods or issue a full refund.
- 5. COMPLIANCE WITH LAWS.** Vendor represents and warrants that it complies with all applicable federal, state, and local laws, regulations, and industry standards, including those related to labor, safety, and environmental protection.
- 6. TERMINATION.** Purchaser may terminate this Agreement for convenience with thirty (30) days' written notice to Vendor. In the event of material breach, either party may terminate immediately if the breach is not cured within fifteen (15) days of written notice.